

HOUSE No. 5604

The Commonwealth of Massachusetts

PRESENTED BY:

Aaron L. Saunders

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act restructuring the town of Ludlow recreation department and the town of Ludlow recreation commission.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Aaron L. Saunders</i>	<i>7th Hampden</i>	<i>7/16/2026</i>

HOUSE No. 5604

By Representative Saunders of Belchertown, a petition (accompanied by bill, House, No. 5604) of Aaron L. Saunders (by vote of the town) relative to the recreation department and recreation commission in the town of Ludlow. Municipalities and Regional Government. [Local Approval Received.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act restructuring the town of Ludlow recreation department and the town of Ludlow recreation commission.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Notwithstanding chapter 45 of the General Laws or any other general or
2 special law to the contrary, the Town of Ludlow’s Recreation Department shall hereby become
3 part of the Parks & Recreation Division of the Town of Ludlow’s Department of Public Works.
4 The Director of the Department of Public Works shall oversee the operations of the Parks &
5 Recreation Division and have all other authority over the Parks & Recreation Division that they
6 have over other divisions within the Department of Public Works.

7 SECTION 2. Upon the effective date of this act, the appointed and elected offices of the
8 Recreation Department, including those of the elected Recreation Commission, shall be
9 abolished and the term of the incumbents in such offices terminated, provided, however, that
10 notwithstanding section 1., the incumbent appointed Recreation Department employees shall
11 become Parks & Recreation Division employees to the extent that their employment positions

are established within the Parks & Recreation Division, and the elected Recreation Commissioners shall be appointed to the same post by the Select Board for the remainder of their previously elected terms. Once the incumbent Recreation Commissioners have reached the end of their respective elected terms, the Select Board shall appoint new members of the Recreation Commission, each for a three-year term, to be staggered so that each member's term ends in a different year.

SECTION 3. Upon the effective date of this act, the Select Board shall become the appointing authority of the Recreation Commission and the Parks & Recreation Division and all its employees. The Select Board shall also have the authority to appoint and remove a Parks & Recreation Division Director, who shall be charged with overseeing the daily operations of the Parks & Recreation Division and who shall be subject to the supervisory authority of the Director of the Department of Public Works. The Select Board shall appoint all previously active members of the Recreation Commission at the time this act takes effect as Recreation Commissioners for the remainder of their previously elected terms. The Recreation Commission and the Parks & Recreation Division shall have all powers and duties contained in applicable laws, including but not limited to chapter 45 of the General Laws.

SECTION 4. No contracts or liabilities in force on the effective date of this act shall be affected by the abolition of the Recreation Department in the town of Ludlow or the establishment of the Parks & Recreation Division of the Department of Public Works pursuant to this act and the Parks & Recreation Division shall, in all respects, be the lawful successor of the Recreation Department so abolished or consolidated. All records, property and equipment of the offices of the appointed Recreation Department shall be assigned to the Parks & Recreation Division.

SECTION 5. This act shall take effect upon its passage.